

# HOUSE . . . . . No. 1509

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Carmine Lawrence Gentile and Ryan M. Hamilton*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote housing cooperatives.

PETITION OF:

| NAME:                           | DISTRICT/ADDRESS:     | DATE ADDED:       |
|---------------------------------|-----------------------|-------------------|
| <i>Carmine Lawrence Gentile</i> | <i>13th Middlesex</i> | <i>1/13/2025</i>  |
| <i>Ryan M. Hamilton</i>         | <i>15th Essex</i>     | <i>1/13/2025</i>  |
| <i>James C. Arena-DeRosa</i>    | <i>8th Middlesex</i>  | <i>2/11/2025</i>  |
| <i>Lindsay N. Sabadosa</i>      | <i>1st Hampshire</i>  | <i>11/20/2025</i> |
| <i>Danillo A. Sena</i>          | <i>37th Middlesex</i> | <i>1/31/2025</i>  |

# HOUSE . . . . . No. 1509

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By Representatives Gentile of Sudbury and Hamilton of Methuen, a petition (accompanied by bill, House, No. 1509) of Carmine Lawrence Gentile, Ryan M. Hamilton and others for legislation to promote housing cooperatives. Housing.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act to promote housing cooperatives.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 40H of the General Laws is hereby amended by adding the  
2 following section:-

3           Section 10.

4           There is hereby established a Massachusetts center for housing cooperatives within the  
5 executive office of housing and livable communities. The Massachusetts center for housing  
6 cooperatives shall provide education, conduct outreach and promote efforts to create an overall  
7 environment in the commonwealth to: (i) expand and enhance cooperative resident ownership;  
8 (ii) preserve the existing and increase the number of cooperatively owned properties; (iii)  
9 publicize and promote the benefits of resident cooperative housing to policy makers and the  
10 general public; (iv) encourage collaborative outreach efforts regarding involvement and  
11 cooperative housing ownership; (v) research and evaluate cooperative housing ownership in the  
12 commonwealth; (vi) showcase cooperative housing initiatives in the commonwealth; (vii)

13 facilitate and coordinate the sharing of existing information and resources; and (viii) provide  
14 grants pursuant to this chapter. The Massachusetts center for housing cooperatives within the  
15 executive office of housing and livable communities shall focus its efforts to promote housing  
16 cooperatives for low to moderate income people in the commonwealth.

17 (1) The director of the Massachusetts center for housing cooperatives shall have the  
18 power to hire staff, appoint any specific committee or task force and contract with consultants,  
19 agents or advisors deemed necessary to further the purposes of this section.

20 (2) The director may accept gifts or grants of money or property from any source to  
21 further the work of the center; provided, however, that any money received shall be deposited  
22 with the state treasurer to be kept in a separate fund in the treasury to be named the  
23 Massachusetts Center for Housing Cooperatives Fund dedicated to the center and for expenditure  
24 without appropriation by the director of the center in accordance with the conditions of such a  
25 gift or grant. Amounts remaining in the fund at the end of a fiscal year shall not revert to the  
26 General Fund and shall be available for expenditure in subsequent fiscal years.

27 (3) The director shall issue rules, regulations and procedures governing the application  
28 for and delivery of services which are deemed necessary for the proper performance of the duties  
29 of the center.

30 (4) Annually, the director shall file a report with the clerks of the house of representatives  
31 and senate, including an inventory of housing cooperatives in the state and the specific activities  
32 taken by the center to support and promote the transition of traditionally structured properties to  
33 a cooperative resident ownership model.

(5) The director shall be a full-time employee of the executive office of housing and livable communities and shall be appointed by and report directly to the the secretary of the executive office of housing and livable communities.

SECTION 2. The commonwealth shall appropriate \$100,000,000 in fiscal year 2026 for a reserve to promote housing cooperatives throughout the commonwealth for low to moderate income people, including, but not limited to acquiring real estate to establish housing cooperatives, preserving, rehabilitating and satisfying the capital needs of existing cooperatives through programs administered by the department of housing and community development directly or through 1 or more of the following: (i) Massachusetts Housing Finance Agency; (ii) Massachusetts Housing Partnership; (iii) Community Economic Development Assistance Corporation; and (iv) ROC USA Capital provided further, that within 180 days of the effective date of this Act, the department shall submit a report to the house and senate committees on ways and means and the joint committee on economic development and emerging technologies on recommendations for creating and preserving housing cooperatives throughout the commonwealth.